



File No.: EXP202212956

RESOLUTION OF SANCTIONING PROCEDURE

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From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Receipt of complaint dated 22/11/2022

On 22/11/2022, a complaint (hereinafter, the complainant) was received by this AEPD against CLUB ATLÉTICO OSASUNA with NIF G31080179 (hereinafter, C.A. OSASUNA). The grounds for the complaint are that C.A. OSASUNA established a biometric facial recognition system (hereinafter SBRF) in April 2022 for the access of spectators to its stadium El Sadar.

Attached is the press release published on 22/05/2022 by elespanol.com, at: https://www.elespanol.com/invertia/disruptores-innovadores/innovadores/tecnologicas/20220522/accesos-rapidos-seguros-sistema-reconocimiento-laliga-operativo/673682724_0.html.

In summary, the news indicates that it has been a process in which La Liga has participated from the beginning, as the entity responsible for managing access to the stadiums of the First and Second Divisions, of the three existing methods for accessing the stadium, and that the process, currently available for members who register through the website, would be an optional method of access to the stadium.

The complainant indicates that freedoms and fundamental rights are restricted, and that the lack of proportionality does not make the processing legitimate, even with any potential consent associated with its implementation.

SECOND: Agreement of the Director to initiate preliminary investigation proceedings.

As a result of the complaint and the news published in the press, the Director of the Spanish Agency for Data Protection sent a letter on 5/12/2022 to the General Subdirector of Data Inspection, for the purpose of conducting preliminary inspection proceedings to verify the proper observance of the regulations.

THIRD: First request to C.A. OSASUNA during the preliminary investigation proceedings.

The General Subdirector of Data Inspection proceeded to carry out preliminary investigation proceedings AI/00417/2022 to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGGD. On 14/02/2023, C.A. OSASUNA was requested to provide information "related to the processing of biometric data referred to in the news published in the media."

On the other hand, it should also be noted that, at that time, other proceedings (file number EXP202213792) were being carried out in which the situation regarding the use of biometric systems for access to stadiums was being investigated (AI/00444/2022).

In the proceedings of the present case, on 13/03/2023, as preliminary information, C.A. OSASUNA stated that "the Facial Recognition Solution or System" (hereinafter SBRF) established allows facilitating access control to the El Sadar stadium and is not configured as mandatory, being a complementary method to the other procedures established by the Club for admission and access control to the venue currently existing, allowing individuals to choose among the different available access methods.

C.A. OSASUNA formalized contracts with DAS-GATE ACCESS CONTROL SOLUTIONS SL (hereinafter DAS-GATE), the provider of the technological services that, through the use of biometric technology generated in turn by VERIDAS DIGITAL AUTHENTICATION SOLUTIONS, S.L (hereinafter, "VERIDAS"), developed the System.

Prior to the implementation of the Solution, between November 2021 and February 2022, a Data Protection Impact Assessment (hereinafter DPIA) was conducted, with the final version dated 4/02/2022, which is attached as DOCUMENT 1, the summary related to the essence of the matter being summarized in the last of the FACTS.

Determination, for each of the activities involving the processing of biometric data, of:

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1.1. Dates on which the initiation and, if applicable, the completion date occurred.

C.A. OSASUNA responded that on 10/04/2022, a pilot test of the system was carried out.

Attached as DOCUMENT 2 is the announcement of the system's operation starting next Sunday in: "news-official statement of 5/04/2022." It is reported that it will be the first club in La Liga to allow access to its stadium through facial recognition, as a quick, comfortable, and secure method, without the need to carry a physical membership card,

- "the turnstile opens in a process that lasts less than a second,"
- "the fan will choose how to enter the stadium, always having the option to use the physical card, the digital membership on their mobile phone, or biometric access,"
- "...following the protocol set by La Liga, a first turnstile with biometric access will be enabled at gate 7 of the stadium," "Initially, only members accessing through gate 7 will receive the link to register."
- "the user registration can be completed via mobile phone, following the steps indicated by the system and taking a photograph of both the membership card and the ID." "Once the registration process is completed, the system will recognize the member at all matches of the season without the need to repeat the process."

C.A. OSASUNA stated that, on the occasion of the next match on 22/04/2022, the number of access gates equipped with terminals for the operation of the System was expanded at gates 3, 8, 10, 11, 16, 21, and 27, thus completing the eight gates initially planned. (One of the turnstiles at each gate has been enabled for this purpose. To use it, prior registration is required.)

Attached as DOCUMENT NUMBER 3 is a "newsletter" that C.A. OSASUNA states was sent to members on 9/04/2022, containing information including that "Registration does not prevent you from accessing on the day you want with your physical card or with the membership on your mobile," or that the SBRF "will allow you to access, even if you have forgotten your card, as you will not need to carry it to enter." DOCUMENT 4 is included, a newsletter that C.A. OSASUNA declares was sent to members on 18/04/2022, which contains an infographic explaining the registration and the messages that appear on the device. There is a tab link to start the activation process (step 1) (registration landing page), "access the following link to start the activation process" - Activate (in the tab) showing the steps:

2 "start the process and accept the terms and conditions for the processing of your data," with a drawing of a mobile device appearing in all steps, and "digitization of the membership - start digitization."

3 "Enter your ID and your email address to start the process." The screen shows "enter your data," the first box to write the ID number including the letter, the next box for the email, and two checkboxes to mark:

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A first: "I expressly consent to the processing of my personal data, including my image, for the generation of a facial vector through an artificial intelligence system that allows for my identification at the time of access to the stadium."

A second: "I have read and accept the Privacy Policy," with Privacy Policy highlighted to create a link. Below the second checkbox, there are buttons for: START and Cancel.

4. "Capture a photo of the QR code of your club membership." On the mobile device used for the operation, there is space for "Scan the QR of your membership. Frame the QR of your membership in the square so that the camera can scan it."

5. "Capture a photo of your ID card from the front and back." "Fit the front of your ID card into the box."

6. "Take a selfie." "Place your face in the oval and perform the indicated movements."

7. "The system verifies that the photograph of your ID card matches the features and identity of the person who took the selfie," a message appears on the mobile device screen stating "Almost there..." with a message indicating that the necessary preparations are being made to access the stadium with SBRF.

8. "The system verifies that the provided data matches that of the subscriber registering in the system and informs whether the process has been completed successfully." "The process has been successfully completed." "At your usual access gate, you will find the fast access turnstiles with facial recognition properly marked."

C.A. OSASUNA states that there is information on "QUESTIONS AND ANSWERS regarding the new access system to the El Sadar stadium" available on the Club's website, which is provided as DOCUMENT 5.

It is noted that it does not have a date, but it informs that the new system will be available for gate 7 for the match on 10/04, and that for the next match on 20/04 until the end of the season, turnstiles for access via SBRF will be enabled at other gates.

It is also noted that it indicates among other aspects that "the activation process can be accessed from this link <https://osasuna-socios.app.das-gate.com/>," and that the activation process requires "your mobile, your Osasuna membership, and your ID card." In "How to activate access with DAS-GATE?", it also refers to the Tablet or computer, accessing the website www.osasuna.es "where you will find a statement with information about the system and a button to start the activation process, <https://osasuna-socios.app.das-gate.com/> coinciding with the explanations in DOCUMENT 4, already seen.

It is reiterated: "Will I still be able to access with my membership? Yes, you will always be able to choose how to access the stadium. Access with DAS-GATE is just one more option available to enter El Sadar," and that "the new system will be optional and voluntary, with the other access modalities that have been used until now remaining available," "you will always be able to choose how to access the stadium." It is also informed that "you can unsubscribe at any time from the user area, at C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

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"cancel account.", as well as the management by DAS-GATE and that they have conducted an EIPD. In "What advantages does it provide?", it is indicated among others that "this type of access allows you to control that it is you who is using the subscription. Enjoying the match with the peace of mind that all present have the necessary permissions is a benefit for everyone", and "This new access system strictly complies with the General Data Protection Regulation and is endorsed by the League."

C.A. OSASUNA states regarding the end date that: "Considering the objective of the System to facilitate biometric access to the stadium for those fans who freely wish to do so, there is no predetermined end date for the processing."

1.2 Purposes and legal bases for the processing activities (art. 6 GDPR). If applicable, reasons for lifting the general prohibition on processing special categories of personal data (art. 9 GDPR).

It reiterates that:

- The System offers its fans a complementary method of access to the stadium to those currently existing (which can continue to be freely used by fans), consisting of the recognition of biometric vectors of those Club subscribers who wish to use the System, instead of those derived from other conventional means such as, for example, reading the QR code of the subscription card or the NFC chip. In no case will members be obliged to use the System to access the venue.
- "Even when a subscriber has registered in the System, they may decide at each match they attend the means of access to the stadium they deem appropriate, being able to choose between biometric recognition or any of the other access procedures or methods that C.A. OSASUNA makes available to them.
- The user may, at any time and immediately, revoke the consent given, as will be indicated elsewhere in this document."

It states that:

- "The purpose of the processing is to guarantee Osasuna fans who have freely decided so access to the stadium through facial recognition, as a non-exclusive alternative to the various means of access provided by the Club.
- "Firstly, specific and free consent is required in all cases for the user to register in the System, so that subscribers are entirely free not to do so, being able to continue using the other means of access provided by the Club, under the same terms as they have been doing so far.

To this end, two processing activities are developed:

- The one related to the registration and verification of the user's identity by the System, in order to include them in it and generate their biometric vector.

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- Referring to the corresponding biometric access control to the stadium at the time of each event, through identification in the System.

- "Regarding the basis of legitimacy for processing, it was first analyzed the applicability of the provisions of Article 9 of the GDPR to the System, considering that it involves the processing of biometric personal data for identification purposes (1:N). This analysis concluded in the applicability of said provision, therefore, along with the concurrence of one of the legal bases provided in Article 6.1 of the GDPR, it was necessary for one of the exceptions to the prohibition set forth in Article 9.2 of the GDPR to be applicable."

As indicated, the use of the System is established as an option that fans may choose freely and completely voluntarily. For this reason, since only the data of those interested who request it will be processed, without conditioning such authorization for access to the stadium, the processing is supported by the provisions of Articles 9.2 a) and 6.1 a) of the GDPR, that is, on the explicit consent of the interested party for the processing of their biometric data."

The DPIA provided analyzes the concurrence of the requirements necessary for the validity of consent in its section 5.2.3 (in particular, its nature as a manifestation of free, specific, informed, and unequivocal will), as well as the viability of this basis of legitimacy in the processing of biometric data, concluding in the validity of said legal basis."

Literally, the DPIA states, within section 5 "Legal basis of consent," after indicating that consent must be lawful, for which it is required to comply with one of the legal bases of Article 6.1 of the GDPR, it proceeds to analyze whether there may be any cause that lifts the prohibition of processing, due to being a special data, "since only if any of the prohibitions is applicable would the study of the legal basis of processing make sense."

In the following section of the DPIA, 5.2.1, it specifies that "the application of facial recognition techniques for biometric identification, and the consequent processing of the personal identifying data of the interested party linked to their facial pattern, or simply of the latter, has usually been the subject of analysis within the framework of public surveillance and security actions.

Therefore, as this surveillance is based on systems that do not allow for the discrimination of users (i.e., the collection of the facial pattern of all individuals exposed to recording or data collection by a particular device occurs), consent is not analyzed in those cases as a legal basis for processing, as its obtaining is not possible or the fulfillment of the requirements demanded for it is evidently compromised (for example, consent cannot be considered to be given merely by the fact of crossing the area where data collection occurs and, at the same time, that consent is hardly free, given that the data will be collected in any case, without the interested party being able to refuse it or revoke a supposed consent given)."

The DPIA considers that under the analysis of, for example, the Guidelines 3/2019 of the EDPB adopted on 29/01/2020, regarding the processing of personal data through video devices, it infers the existence of situations in which consent could be a basis.

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appropriate legal basis for the processing that in its point 77, within section 5.1 "general considerations for the processing of biometric data," states:

"77. The use of video surveillance, including the biometric recognition function installed by private

entities for their own purposes (e.g., marketing, statistics, or even security), will generally require the explicit consent of all interested parties [Article 9, paragraph 2, letter a)]; however, another appropriate exception from Article 9 may also apply,” and provides the following example:

“To improve its service, a private company replaces the control and identification points of passengers within an airport (baggage handling, boarding) with video surveillance systems that use facial recognition techniques to verify the identity of passengers who have opted to consent to such a procedure.

Since the processing falls within the scope of Article 9, passengers, who will have previously given their explicit and informed consent, will need to be included in an automatic terminal, for example, to create and register their facial template associated with their identity card and boarding pass. The facial recognition control points must be clearly separated; for example, the system must be installed in a gate so that the biometric templates of individuals who have not given their consent are not captured. Only passengers who have previously given their consent and proceeded with their registration will use the gate equipped with the biometric system.”

The EIPD considers that even when in an identification system and not an authentication one, in its system, also of identification, the interested party can freely decide to submit to the processing, without negative consequence, “that is, the comparison system remains 1 to ‘n’, where ‘n’ is limited to those interested parties who voluntarily and freely decide and consent to the processing.”

The EIPD deems that the consent is valid based on Guidelines 5/2020 of 04/05/2020, regarding consent in the sense of Regulation EU 2016/679, or in the legal report of the Legal Cabinet of the AEPD (G.J. of the AEPD) 36/2020, as it does not entail any disadvantage or harm to those who do not give it or withdraw it. Both means (referring to the accesses) will be essentially equivalent except for the intrinsic benefits of each, for example, the greater or lesser speed of access.

It reviews the elements of consent, indicating in the EIPD, page 38, 5.2.2., that the Club does not benefit anyone who opts for one access system or another, “without prejudice to promoting the use of this access system, given its novel nature, both means being essentially equivalent except for the intrinsic benefits of each, for example, the greater or lesser speed of access.” It considers that it meets all its requirements and in its final section, 5.2.3 states:

“Therefore, it should be considered that the processing is validly covered by the provisions of Article 9.2.a) of the GDPR.

The consequence of the above is that, since the consent required by Article 9.2 a) is reinforced compared to that established in Article 6.1 a) as the general legal basis for the processing of personal data, it must be considered that such consent is also subsumed within the content of this latter norm, so that, in addition, the

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The processing will have the legal basis established in Article 6.1 a), thus complying with the principle of legality.”

1.3 Proportionality assessments carried out for the execution of activities through the processing of biometric data.

It was responded that this is contained in section 6.4 of the DPIA, first analyzing the fact that the processing of biometric data of the data subjects “is suitable for achieving the purpose of recognition for access control—following the doctrine established by the AEPD in the resolution of procedure PS/00120/2021 (Mercadona case) and in the report of the Legal Advisory Office 47/2021,” “highlighting that the system, unlike those analyzed in the aforementioned AEPD documents, would be based on consent, thus recognition would only occur for those individuals who request it and freely authorize it.”

- Section 6.4.3 of the DPIA, framed within the analysis of the principle of data minimization, and more specifically, of the “criteria regarding the application of the principle of minimization in the processing of biometric data (6.4.2), indicates that ‘the following must be taken into account to assess the necessity and proportionality of the processing:’”

A- The processing will be limited solely to those who voluntarily wish to make use of this procedure; it is neither indiscriminate nor massive, preserving the alternative means of access.

B- The processing involves an identification process, “and not authentication, which would be less invasive; however: it occurs on vectors and not directly on images or biometric information, and the search for correspondences between vectors would be limited not to all individuals accessing the stadium.”

C- No remote facial recognition is performed in completely open public areas; rather, the identification process occurs just a few centimeters from the machine, in front of which the user must stand less than ONE meter from the terminal for their data to be captured, making it impossible to attempt “vectorization” of other individuals who do not have the specific intention of accessing the sports venue through the solution.

D- “Only data will be processed based on the consent of the data subjects who freely wish to make use of the solution, which should be positively weighed for the purposes of verifying the proportionality of the processing, given that it is possible to appreciate from the conduct of the data subject, the concurrence in the processing of a mutual benefit for the Club and the individual, which streamlines access to the stadium.”

E- The use of the solution is limited to subscribers over 14 years of age by virtue of Article 7 of the LOPDGDD in connection with Article 8 of the GDPR—the age will also be verified during the registration process, as the scanned image of the ID card is processed.”

- It adds that this occurs within the framework of Article 11.1 of the Anti-Violence Law, which establishes that “all sports venues where state competitions are held...”

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“Professional character must include a computerized system for the control and management of ticket sales, as well as access to the venue.”

C.A. OSASUNA considers that the processing exceeds the triple test of suitability, necessity, and proportionality, indicating that:

“In effect, the processing of the data carried out for registration in the solution is, as will be seen later, suitable for fulfilling the process of registration, as it allows for the full identification of the subscriber. Likewise, the processing of the facial vector is suitable for facilitating access to the El Sadar stadium through the readers incorporated into some of the entry turnstiles, by simply reading the image of the interested party and comparing it with the aforementioned facial vector.

Secondly, the processing is necessary to achieve the purpose pursued by the processing, which is to facilitate access to the sports venue for those OSASUNA subscribers who wish to do so, through an agile and simple procedure. Certainly, at this point, it is possible to achieve the intended purpose (access to the El Sadar stadium) using a less intrusive means (the use of traditionally employed means, such as the use of a QR code reader incorporated into the subscription). However, the implementation of the processing analyzed in this DPIA does not prevent the use of this option. That is to say, the interested party can freely decide, without it affecting their rights as a subscriber, to opt for one treatment or another for access to the stadium. Thus, the necessity would be linked in this case to the will of the subscriber, which cannot be satisfied using a less intrusive means of access.

Finally, regarding compliance with proportionality, it should be noted what the AEPD indicated in the previously reproduced documents, in the sense that this principle would be violated if subscribers were imposed, without any possible alternative, access to the venue through the described procedure and it could not be appreciated the concurrence of “more benefits or advantages for the general interest than detriments to other conflicting goods or values.” However, in this case, it is the subscriber themselves who weighs the preference between one system or another (at the time of registration and, additionally, at each access) and the prevalence of their particular interest over the rights they may consider affected, without their personal integrity being affected in any other way...”

-C.A. OSASUNA states that the principle of minimization would be fulfilled, as noted in point 6.4.5 of

the DPIA “concluding that, given the terms of operation of the System, the requirements of Article 5.1 c) of the GDPR are met both in the registration process of the interested party who freely decides to do so and in their access control to the stadium, should they wish to make use of the aforementioned System. In any case, in section 2 of the DPIA, the data flows generated as a result of the System are detailed.”

C.A. OSASUNA states that: “Furthermore, the data processor DAS-GATE provides additional technical guarantees, such as:

- Presents controlled vectorization measures in the registry
- Maintains security measures against unwanted intrusions
- Complies with official certifications

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- When addressing the Solution of a model based on Artificial Intelligence, the non-traceability of facial features – reversibility – is reinforced compared to previous or less advanced software and models. Consequently, in accordance with the information provided in the Descriptive Document, this would imply that the biometric vector resulting from the captured facial image will be linked to the Solution without any other facial recognition system being able to reverse the vector. That is to say, the mathematical vector cannot be interpreted for the purpose of extracting information from the initial interested party, resulting practically in a hash of the interested party's facial image.

In particular, in accordance with the information conveyed by DAS-GATE, each biometric engine of DAS-GATE and even each version of that biometric engine is unique, such that the vectors derived from the Solution are not interoperable with other versions of the software.

1.4 If applicable, legal basis for the processing of personal data related to convictions and criminal offenses (Article 10 of the GDPR and of the LOPDGDD) and, if applicable, personal data related to administrative offenses and sanctions (Article 27 of the LOPDGDD).

It was answered that the system does not collect data on these matters.

1.5 Procedures followed to fulfill the duty of information (Articles 13 and 14 of the GDPR). Evidence of compliance.

It was answered that “since personal data is collected by the Club, directly from the interested party at the moment they decide to register in the System, information is provided in layers.”

Regarding the moment when the information is provided, the Club, at the address www.osasuna.es/acceso-biometrico-a-el-sadar, makes available to the interested party basic information about the adopted procedure, as well as the most frequently asked questions regarding the System, offering the interested party the possibility to continue the process through a link to the DAS-GATE portal.

It states that “Once the interested party has entered the DAS-GATE portal, through which the registration process will take place, the basic information related to the processing appears, which is provided as DOCUMENT 6, which includes a link to the second layer of information incorporated in the privacy policy available on the OSASUNA website, which is provided as DOCUMENT NUMBER 7.”

It is noted that DOCUMENT 6 is titled: “processing of access control data through facial recognition,” and the following information stands out:

“Responsible: C.A. OSASUNA

Purpose: access control through a facial recognition system

Legitimacy: consent of the interested party Article 6.1. a) GDPR and Article 9.2.a) express authorization for the processing of images through an artificial intelligence system, facial recognition, generating a vector that allows identifying the user for access control to the facilities.

Recipients: no data transfers to third parties are planned.

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Rights: You have the right to access, rectify, and delete your data, as well as other rights indicated in the additional information, which you can exercise by contacting lop@osasuna.es and dpo@gfmservicios.com, by clicking the link on the website and the member portal “exercise of rights ArSol.”

Additional information: You can consult additional and detailed information about Data Protection here <https://www.osasuna.es/privacy-policy>, with a tab below to accept and another to reject.

C.A. OSASUNA states that “this information includes the consent box related to the processing, which the interested party must check if they choose to give their consent, having been previously informed of all aspects of the processing. Reading this information is mandatory to proceed with the process.”

C.A. OSASUNA states that “Once consent for processing has been granted, the consent manager of OSASUNA sends the subscriber an email (a copy of which is provided as DOCUMENT NUMBER 8) in which the specifics of the technical details of the granted consent are provided, as well as the privacy policy linked to the processing of the data consented by them, with such transmission being recorded. In this way, the interested party not only accesses the privacy policy at the time of their registration in the System but also personally receives the aforementioned policy, so that they can have it available at any time.

In any case, the manner in which OSASUNA informs the interested parties about the processing of their data is analyzed and detailed in section 7.1 of the provided DPIA.”

It is noted from DOCUMENT 7, “last updated January 2022,” that the second layer of information also includes the designated DPO and their email, and the purposes are defined more broadly, indicating that “the personal data of the subscribing individuals is processed for the purpose of digitizing these and verifying the identity of the subscriber, with the aim of registering them in the DAS-GATE system, a contracted provider.”

“(SUBSCRIBER REGISTRATION) The data to be processed for this purpose will be those provided by the interested party (identifying data), as well as the National Identity Document, the image obtained from a selfie of the interested party, and the contents in the QR code of the subscription (subscriber number and ID number, as well as access ID), and

(BIOMETRIC ACCESS): personal data will be processed for the purpose of allowing access to the stadium of Club Atlético Osasuna through facial recognition, an alternative entry system that enhances access security, as well as streamlining entry, facilitating this for the club's members.

LOG IN to the das-Gate portal (IS) – the personal data of the interested parties will be processed so that they can identify themselves and access the Das Gate portal, allowing them to manage access through facial recognition associated with the subscription, being able to request cancellation of this service or the transfer of the subscription, in those cases where it is permitted.”

In terms of retention, it states that “The identifying data of the member will be retained for the duration of the process for generating the corresponding vectors, being automatically deleted by the computer systems at that same moment. The irreversible vectors, as well as the access ID and user ID (created by the member), will be retained until the interested parties request their deletion, unless...

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other legally established provisions shall apply. In any case, the data will be deleted if the user ceases to hold the status of subscriber of C.A. Osasuna or assignee of a subscription from the Club.”

“You may exercise your rights through the private area of each user on the DAS-GATE portal.”

“You have the right to withdraw such consent at any time.”

“Data being processed

- Identifying data of the subscriber. (ID of the holder, front and back)
- Email address of the subscriber.

- Data from the QR code of the subscriber (ID, subscriber number, and access ID)
- Subscriber number
- Image of the subscriber
- “Vector” algorithm of the image of the subscriber.
- User ID on the Das Gate platform.”

For its part, DOCUMENT 8 consists of an email informing the subscribing member with a link to the privacy policy and the possibility of exercising their rights, containing the IP, ID, and email, as well as the date on which consent was given, as “proof of consent.”

1.6 Retention periods for personal data (obtained from the registration process, and from the identification process whether positive or negative) or, when not possible, the criteria used to determine this period. Evidence of compliance.

It was responded that “for the determination of retention periods, it will be necessary to distinguish between:

- The data subject to processing during the subscriber registration process.
- Regarding the data processed during the user registration process, its retention will be strictly limited to the period in which the identity of the subscriber is verified to carry out their registration in the System, given that the only purpose justifying this processing is to achieve the aforementioned verification as a prior step to the registration and the generation of the facial vector of the subscriber from their selfie photo.
- On the other hand, regarding the image collected for the generation of the aforementioned vector, it is deleted once it is verified that it corresponds to the one on the ID provided by the user, having generated the corresponding facial vector.

Thus, upon completion of the registration process, the System only retains the facial vector of the subscriber, without associating it with any identifying data contained in their ID or subscription or with the data provided by the interested party in the registration process.

The System only retains, (i) the facial vector; (ii) the anonymous access identifier corresponding to the subscription, solely for the purpose of preventing duplications in its use; and (iii) the hash of the user identifier in the System, which is collected solely for the purpose of serving as the first element of authentication for secure access.

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by the user to the DAS-GATE portal, in order to interact with the System (for example, to proceed with their cancellation or exercise their rights).

These data will be retained as long as the interested party does not revoke the previously granted consent or continues to hold the status of a subscriber of OSASUNA, proceeding to their deletion in the event of revocation or cessation of the status of subscriber.

The revocation of consent may be carried out directly and at any time by the interested party from the user portal.

C.A. OSASUNA states that “In the event of any of these circumstances occurring, the data will be blocked in accordance with Article 32 of the LOPDGDD for a period of 3 years, coinciding with the maximum statute of limitations for violations related to personal data protection, in order to respond to any potential liabilities arising from the processing.

Attached, as DOCUMENT NUMBER 9, is a copy of the screenshots related to the exercise of rights on the OSASUNA website titled “exercise of rights ArSol,” consisting of a form to complete “exercise of rights ARSOL.” It is informed, among other aspects, that “If you have granted your consent for any specific purpose, you have the right to withdraw or revoke the consent granted at any time...”

At the bottom, there is a dropdown with the rights being exercised and a field to fill in “message.” It requires the email, mobile number, ID number, first name, and last name, and an IMAGE of the ID, which must be selected as a file to attach.

- The data that is processed for the purpose of facilitating access to the stadium.

"It is explained in greater detail in another section" (response to point 2.3 of this document). The System does not store the image captured by the reader located at the entrance to the venue nor the facial vector generated from it, which will only be processed and retained for the minimum time necessary to carry out the identification of the subscriber as such. Thus, only information related to the fact of access will be stored (i.e., logs of successful identification and acceptance or denial of access, associated with anonymous identifiers), but in no case the captured image, nor the facial vector associated with it.

The data related to the logs linked to identification and access to the stadium will be retained until the start of the season following the one to which the stored access refers, at which point they will also be blocked for the aforementioned period of three years.

1.7 If applicable, determine the recipients or categories of recipients of the personal data collected under these treatments.

It was responded that there are no planned communications of data to third parties. To carry out the processing of data for access through facial recognition, they signed a contract under the provisions of Article 28 of the GDPR in order to provide OSASUNA with a service consisting of the processing of the identifying data of the subscriber and the generation of their facial vector, with the information stored at C/ Jorge Juan, 6

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its servers, without the Club's servers storing any information related to the development of the System.

The aforementioned software and hardware license agreement is provided as DOCUMENT NUMBER 10, and in ANNEX I the service agreement.

1.8 Determine the existence or absence of automated individual decisions as described in Article 22 of the GDPR and, if applicable, describe the underlying logic of the decisions and the data involved in the process, and "Specify whether the processing activities involve international transfers of personal data and, if so, detail the applied safeguards."

It was responded that "the data collected is in no case subject to processing for the adoption of automated individual decisions. At the same time, the processing of the data is carried out entirely within the European Economic Area, with no international transfers of personal data occurring."

1.9 List of intervening entities (data processors) in the procedure indicating the role of each, the set of personal data to which they have access, the guidelines provided to them, and the commitments they have made regarding the operation of the system.

It was responded that:

"The personal data that will be accessed by DAS-GATE are as follows: (i) number of the National Identity Document; (ii) image of the front and back of the National Identity Document; (iii) subscriber number; (iv) email address; (v) selfie photo; (vi) proof of life consisting of an image of the interested party in motion; (vii) data from the QR code of the member's subscription (DNI, subscriber number, and access ID); (viii) 'Vector' of the image; and, (ix) user ID on the DAS-GATE platform."

For its part, DAS-GATE has signed service provision agreements with two entities, which act as sub-processors in the terms established in Article 28 of the GDPR, which are:

a) VERIDAS DIGITAL AUTHENTICATION SOLUTIONS, S.L., as a provider of document validation technology and biometric recognition.

b) ***COMPANY.1 (hereinafter, "****COMPANY.1") as a provider of (...) and (...)

The services provided by these entities are located within the European Economic Area (more specifically, in Spain, Ireland, and Germany) and therefore no international data transfers occur.

Regarding the formal relationship between DAS-GATE and VERIDAS, DOCUMENTS NUMBERS 11 and 11 bis are provided, which include the License Agreement for use and distribution for platforms signed between VERIDAS and DAS-NANO, S.L., as well as the assignment agreement of the aforementioned contract formalized by DAS-NANO, S.L. and DAS-GATE, by virtue of which the latter holds the status of licensee in relation to the System. On the other hand, DOCUMENTS NUMBERS 12

and 12 bis include the terms and conditions signed by DAS-GATE in relation to the service provided by ***COMPANY.1, as well as the service agreement related to the processing of personal data carried out by the aforementioned provider.

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2. Documentation/Description of the biometric data processing system or systems used in each of the aforementioned activities, which includes at least the following information:

2.1- System architecture indicating the locations where each element is located and executed.

It responded by providing a schematic drawing with the process and flow of data: “both in the phases of registration in the system and access to the stadium. Furthermore, it details how the user registered in the System can interact with it, revoking their consent or exercising the rights established in the personal data protection regulations.”

It accompanies the graphics-scheme: “Registration Process-Digitalization of subscription,” to its right: “Access to the stadium.” Below: “Access to the DAS-GATE portal of the Club” and to its right “Exercise of rights.”

The drawings-schemes contain boxes with arrows indicating where that information/data goes. Since they are not described literally or explained by C.A. OSASUNA, they are described below:

In the “Registration Process-Digitalization of subscription,” it starts from a box that contains: “DNI, SELFIE, QR subscription card” with an arrow pointing to another central box called “Validation of subscriber identity: DNI, SELFIE, QR subscription card” below the box it states: “deleted in seconds.”

From “validation...” two arrows emerge,

- one to a box “DNI, SELFIE, QR subscription card data blocked,” from which no arrow emerges.
- another, to the box with a cloud symbol: “facial vector, access ID, user hash ID + operation logs” with the note below: “data necessary for operation.” From this box, an arrow leads to the scheme of the next process: “ACCESS TO THE STADIUM.” In this process, from the action of “facial photograph” an arrow goes to the box: “Facial vector, access ID + operation logs” which carries a drawing next to a device that captures the face. From this, an arrow goes to the box “Access ID,” from which another arrow goes to the box “Door opening.”

The graphic below contains the process: “access to the DAS portal: GATE of the Club,” originating from the box “User ID, SELFIE,” with an arrow to the box called “Authentication of the subscriber:,” which contains the pair “User ID, user hash ID,” and “SELFIE-facial vector.” The box has an arrow coming to it from the box “USER HASH ID-Facial vector” with the cloud symbol, and from the box “authentication of the subscriber” an arrow leads to “portal access.”

The last graphic, “exercise of rights”

Explains the types of data “in the system”:

- “personal data of users,” “derived from the content of the subscriber's subscription and the digital identity verification process,” in its facets of:

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a) Generation: web services deployed in the cloud.

b) Storage: Encrypted data in cloud databases and images temporarily stored in S3 cloud storage.

These are used solely for identity verification and generation of the biometric mathematical vector (embedding) and are automatically deleted after the retention period previously agreed upon with the client.

c) Distribution: none.

d) Access: Both (...) and (...) are not publicly accessible and only DAS-GATE services can consume

them. The databases are located in (...) of the network. The images are stored (...). At a logical level, both services are protected by mechanisms (...) to ensure that the information only (...).

- "Credentials: anonymized credentials belonging to users: embedding and user identifier for access control of La Liga.

a) Generation: web services deployed in the cloud.

b) Storage: the vectors are stored in an encrypted database in the cloud.

c) Distribution: (...) to databases in (...). Secure communications (...), exchange of (...) and algorithms (...). Authentication of the connection (...).

- Observability: information about the events that occur in the System (status of services in information about their use, alerts, possible errors, etc.). This information is sent from the different services (...) authenticated to a database in the cloud that is only accessed by the visualization service (...).

2.2- Registration process of the individuals subject to identification indicating the categories of interested parties and the categories of personal data collected. Also indicate the number of individuals stored who will be subject to detection by the system.

It responds through "description of the registration process in the System" included in the DPIA, section 2.1 and ss.

"To register in the system, the subscriber must enter the OSASUNA website, where there will be an informative screen about the functionalities of the system, as well as a button that will allow them to start the process.

In case of requesting the initiation of the process, the user is redirected to the DAS-GATE website, where the process will be developed.

Upon entering this website, the interested party is presented with the terms and conditions related to the processing of their data, which they must accept.

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Furthermore, the data related to your National Identity Document number (hereinafter, "DNI"), subscriber number, and an email address will be requested, initiating the registration process.

This data will be collected and stored directly on DAS-GATE's own servers, with no processing of the data taking place on OSASUNA's servers, which will be limited to redirecting interested parties to the former. However, the email address, as well as the accreditation of the effective provision by the interested party of consent for processing by the subscriber, will be transmitted immediately to OSASUNA, so that they can adequately manage requests from interested parties to exercise the rights established by data protection regulations. The accreditation of consent will be stored on Osasuna's servers through a software application integrated into the "consent manager" process, thus recording all consents from interested parties for subsequent management by the Club. This complies with the requirements set out in the GDPR for the accreditation of the effective provision of consent by the interested parties.

Additionally, at this stage, the interested party must display the image of the QR code present on their subscriber card. This Code contains information about the subscriber's DNI number, their subscriber number, and their access identifier. The system extracts the data corresponding to the DNI number and subscriber number and cross-references it with the data previously entered by the user to verify their identity.

Once the aforementioned verification is completed, the user captures the front and back of their DNI, then requests to take a selfie with their mobile phone, as well as a "proof of life," consisting of a movement in front of the camera of their mobile phone, to ensure that it is a living person and not a static image.

The system then proceeds to check the facial patterns of the DNI photograph and the selfie, concluding the process if the cross-referencing yields a positive result.

At the same time, by taking the selfie, the facial vector of the interested party is generated, which will be subject to processing and storage by DAS-GATE, in order to allow the identification of the

interested party and their access to the stadium in the development of the second phase of the processing.

- "Likewise, at this stage, the subscriber will also be asked to create a user identifier on the platform created for the development of the Solution. The purpose of creating this identifier will be:

- Generally, to establish a first element of authentication that will allow verification of their identity on the DAS-GATE portal.
- Additionally, the identifier will allow the interested party to manage their subscription within the application in the future, particularly in cases where transfers of the subscription will be made, as analyzed in section 2.4 of this DPIA, or the cancellation of their registration in the DAS-GATE system.

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The system will instruct the subscriber about the characteristics that their user identifier must meet to ensure its robustness (for example, that it may consist of an alphanumeric code with certain characteristics).

The user identifier will be subject to encryption (...) applied by DAS-GATE, and will be stored on its servers.

In any case, the system will issue a message informing whether the user registration process has been successfully completed.

- "Through these operations, the system verifies that the person registering is the holder of the subscription used for the registration, given that:

- The National Identity Document number entered is verified against the one included in the QR Code of the subscription card and the document shown for identity verification through its photograph, ensuring that all three match.
- It is verified that the member number entered by the user corresponds to that of the QR code of the subscription card.
- Finally, it is verified that the person carrying out the process is indeed the holder of the subscription, through the authentication of their facial pattern with the one appearing in the photograph of their National Identity Document.

- Additionally, regarding the generation of the facial vector, it will be carried out using a model based on Artificial Intelligence and, more specifically, on neural networks developed by VERIDAS. In this way, the mathematical vector is not generated merely as a result of measuring points of the subject's biometric characteristic, but rather from Artificial Intelligence algorithms, possibly combined with other components of the model.

This development implies that the vector resulting from the application of the engine used in the development of the Service does not correspond to what could result from the use of a different artificial intelligence engine or even from the use of a different version of the engine itself, given that each version of the biometric engine is unique, which prevents the mathematical vectors derived from the Service from being used by other engines.

Thus, in this model with Artificial Intelligence, even the expert engineer who designed the system would not be able to interpret the mathematical vector in order to extract information about the individual to whom that vector refers. Therefore, in the current state of the art, it would be impossible to extract, from the vector, information about the individual to whom it belongs or that allows for their identification, and in particular the image (selfie) from which the facial vector was obtained.

At the same time, from the documentation provided, it follows that the reliability and accuracy of the model based on neural networks reaches (according to analyses conducted through laboratory tests, external evaluations, etc.) 99.8%, compared to the accuracy of 95% of traditional models based on distance recognition from certain facial points.

Likewise, the data used once the Service is operational is not employed for any purpose other than the identification of the interested party through its comparison with an image of the same, without being

retained for any other purpose and without being used for the training of the model itself. In this way, the image from which the facial vector originates is deleted from the system as soon as the process of generating that vector concludes.

To this end, as indicated in the documentation provided:

- For the training of the systems, VERIDAS uses public databases intended for these purposes or, failing that, private databases created by the entity collecting the consent of the subjects for this specific purpose.
- In relation to the above, it should be noted that under no circumstances are the data being processed by the biometric engine for the provision of the identification or authentication service in production used for the automatic training of the system. There is no training of the system during the identification or authentication of users in production.

The biometric engine does not contain any data from those used for its training. The engines are a set of algorithms derived from the precise training carried out in the development stages of the technology, but do not contain personal data."

- "Thus, regarding the categories of interested parties, OSASUNA processes the data of the fans of the Club whose subscription allows them to access through any of the doors of the stadium where a biometric access terminal is installed and who have voluntarily registered in the System.

On the other hand, regarding the categories of personal data subject to processing, it follows from the above that they are as follows:

- Identifying data of the member (ID of the holder, front and back).
- Email address of the member.
- Data from the QR code subscription member (ID, subscriber number, and access ID).
- Member number.
- Image of the member.
- "Vector" algorithm of the member's image.
- User ID on the DAS-GATE platform."

Finally, regarding the number of people who are registered and therefore can be identified by the System, as of 6/03/2023 it is (...).

2.3 - Process of comparing the captured data with the registered data, indicating the guarantees of accuracy and the moment or moments in which it is executed (in real time, on the C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

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recorded images, etc.). It is also requested to provide the list of data resulting from the comparison process, whether the result of the comparison is positive or negative, specifying, in each case, the actions taken (registration, communication, deletion, etc.).

It was answered that "the biometric comparison process is as follows:

- (i) "When a biometric access attempt occurs, the frame captured by the camera of the person activating the System is taken when they are positioned less than one meter from the screen and facing it;
- (ii) A face detection inference is performed on that frame.
- (iii) If the detected face exceeds a sufficient threshold of size and proximity to the biometric terminal, and quality in detection, it is processed in such a way that a mathematical vector calculated by the neural network is generated.
- (iv) The calculated vector for the detected face on the frame captured at that moment is compared based on mathematical distance with the vectors registered for the users enrolled in the System. It should be clarified that current biometric technology does not perform these comparisons based on characteristic points of the face, such as mouth size, distance between eyes, or curvature of the brow arch.
- (v) It is considered that the person present in front of the camera at that moment is identified as one of the registered individuals when the similarity between both vectors (the registered one and the one processed at that moment) exceeds the established threshold.
- (vi) Additionally, inferences are made to determine if that face is authentic and not an attempt at impersonation (such as, for example, presenting a printed image, using a mask, presenting an image

or video from a screen, etc.).

Therefore, for an ongoing biometric access attempt, the person will only be identified as registered if all the previous requirements are met: 1) a sufficiently close face is detected (less than ONE meter from the terminal), with sufficient size and quality, in the frame being processed, 2) the degree of similarity between the mathematical vector calculated for the detected face and the vector registered for the user is met, and 3) it is considered that it is not an attempt at impersonation.

Once the authentication of the interested party is produced through the identification of their facial vector, a request for access will be sent to the server responsible for operating the entry turnstiles to the stadium. This access request consists of communicating to the server that an anonymous access identifier is in front of the terminal and has been authenticated according to the previous process.

These servers are managed by the Sociedad Española de Fútbol Profesional, S.A.U. (hereinafter, "SEFPSA"), which acts in the development of this activity on behalf of OSASUNA, which has entered into the corresponding data processing agreement with it under the terms established in Article 28 of the GDPR. Thus, the transmission of this data is only carried out between data processors of OSASUNA, without constituting a transfer of personal data.

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In any case, it is necessary to indicate that the aforementioned data processor does not access or carry out the processing of any biometric data at any time, limiting the processing to the anonymous access identifier, in order to operate the corresponding turnstile and verify that there is no duplicate use of the subscription, without providing any data related to the facial vector of the subscriber or any other information that would allow for their identification. Upon receiving this information, if the use of the subscription for access to the event in which the access request is made is not already recorded, access acceptance will be confirmed by activating the entrance turnstile and proceeding to its opening. When the terminal attempts to identify the user who has positioned themselves in front of it (as previously explained), the following logs are recorded: 1) date-time, 2) identifier of the biometric terminal, 3) anonymous identifier of the user most similar to the face being identified, and 4) biometric similarity score obtained.

In the event that the biometric similarity score exceeds the established security threshold (positive comparison), the System displays a success message for identification on the screen to the user. In parallel, the System sends the access request to SEFPSA, sending only the associated anonymous identifier. The sending of this request is also logged by the terminal (date-time, terminal identifier, recognized user anonymous identifier).

When processing the access request sent by the biometric terminal, SEFPSA decides whether to authorize or deny the user's access and acts directly on the turnstile by commanding (or not) its opening. SEFPSA does not inform the biometric terminal of its authorization decision. It is worth mentioning at this point that SEFPSA, upon receiving that request, cannot distinguish between requests received from biometric terminals and readings made from QR or NFC; that is, it does not know how the user has been authenticated.

SEFPSA "at no time accesses or carries out the processing of any biometric data, limiting the processing to the anonymous access identifier, in order to operate the corresponding turnstile and verify that there is no duplicate use of the subscription, without providing any data related to the facial vector of the subscriber or any other information that would allow for their identification. Upon receiving this information, if the use of the subscription for access to the event in which the access request is made is not already recorded, access acceptance will be confirmed by activating the entrance turnstile and proceeding to its opening.

In the event that the biometric similarity score does not exceed the established security threshold (negative comparison), the System displays a message of unsuccessful identification on the screen to the user and does not send any access request to SEFPSA.

It is expressly stated that the established security threshold is (...). That is, it will be necessary to

exceed this threshold to consider the comparison positive. If the comparison yields a result below this threshold, it will be considered a negative comparison.

The facial recognition model of VERIDAS used by the biometric terminals has been evaluated by the NIST (National Institute of Standards and Technology) of the USA, which is the international body that has effectively become the evaluator of this type of technology. The results of the NIST evaluations are public and can be consulted.

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